



POLICE DEPARTMENT

July 14, 2025

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202400967 (Incident Date: January 18, 2024) regarding Police Officer
Conor McGouran, Tax No. 972102 (PODS Case No. C-034539)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202400967, pertaining to Police Officer Conor McGouran. Having analyzed the facts and circumstances regarding this matter, the Police Commissioner has determined that to pursue Charges and Specifications against said officer would be detrimental to the Police Department's disciplinary process.

In this matter, Officer McGouran stopped an individual; did not inform the individual of the basis for the stop; failed to activate his body-worn camera; and failed to offer the individual his Right to Know business card. Although Officer McGouran mistakenly believed his interaction with the individual was not a "stop" and would therefore not require him to provide a reason, activate his body-worn camera, or offer a business card, it is clear that it was, considering the totality of the circumstances. Therefore, the Police Commissioner agrees with the CCRB's substantiation of the allegations against Officer McGouran. However, given Officer McGouran's lack of disciplinary history and lack of prior substantiated CCRBs, the Police Commissioner finds that the matter would be best resolved with a Command Discipline rather than Charges and Specifications.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to direct the issuance of a Schedule "A" Command Discipline with the forfeiture of two (2) vacation days for the substantiated allegations.

Sincerely,

Michael P. Baker
Assistant Chief
Commanding Officer
Police Commissioner's Office

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ERIC L. ADAMS
MAYOR

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Dr. MOHAMMAD KHALID
INTERIM CHAIR

July 17, 2025

The Honorable Jessica Tisch
Police Commissioner
New York City Police Department
One Police Plaza
New York, New York 10038

Re: CCRB Case No. 202400967 (Incident Date: January 18, 2024) regarding Police Officer
Conor McGouran Tax No. 972102 (PODS Case No. C-034539)

Commissioner Tisch:

I am writing in response to the letter from Deputy Chief Michael P. Baker, dated July 14, 2025 (hereinafter the “Letter”), informing the Civilian Complaint Review Board (hereinafter the “CCRB”) that in the interest of justice, you intend to retain jurisdiction over this matter and issue a Schedule “A” Command Discipline and impose the forfeiture of two (2) vacation days against Police Officer Conor McGouran (hereinafter “Officer McGouran”) for Specifications (1) through Four (4).

Pursuant to Paragraph 2 of the Memorandum of Understanding between the CCRB and the New York City Police Department (hereinafter the “NYPD”), dated April 2, 2012, I am responding to Deputy Chief Baker’s notification.

Deputy Chief Baker’s Letter agrees with the CCRB’s substantiation of four (4) allegations against Officer McGouran. Nevertheless, citing Officer McGouran’s lack of disciplinary history and lack of substantiated CCRB allegations, the Letter concludes that the matter would be best resolved with Command Discipline rather than Charges and Specifications. The CCRB respectfully disagrees with this assessment.

Deputy Chief Baker’s Letter does not dispute that Officer McGouran abused his authority as a member of the NYPD in that Officer McGouran interaction with Complainant § 87(2)(b) (hereinafter the “Complainant”) constituted a “stop”—the basis for which Officer McGouran did not have sufficient legal authority. Specification One (1). The CCRB found PO McGouran’s explanation for the stop nonsensical.

It is also undisputed that during this improper stop Officer McGouran compounded his initial abuse of his authority and flouted the Patrol Guide further. In that, specifically, Officer McGouran: failed to activate his body-worn camera during the wrongful stop of the Complainant; failed to explain to the Complainant the reason for the stop; and (3) failed to provide the Complainant with Officer

McGouran's Right-to-Know business card required pursuant to a stop. Specifications Two (2), Three (3), and Four (4), respectively.

The CCRB submits that, notwithstanding Officer McGouran's lack of disciplinary history or substantiated CCRB allegations, given the cumulative nature of Officer McGouran's abuses of his authority in this one encounter, Charges and Specifications are the most appropriate for transparency and public accountability.

Based upon the foregoing, it is respectfully requested that the NYPD serves Charges and Specifications upon Officer McGouran.

Respectfully submitted,

Andre D. Applewhite
Andre Applewhite
Chief Prosecutor
NYC Civilian Complaint Review Board



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Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202400967 (Incident Date: January 18, 2024) regarding Police Officer
Conor McGouran, Tax No. 972102 (PODS Case No. C-034539)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated July 17, 2025, concerning the Civilian Complaint Review Board ("CCRB") case involving Police Officer Conor McGouran, and nevertheless maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Police Officer McGouran for the reasons expressed in my July 14, 2025 letter.

Therefore, the Police Commissioner affirms her decision to exercise Provision Two of the Memorandum of Understanding and now directs the issuance of a Schedule "A" Command Discipline with the forfeiture of two (2) vacation days for the substantiated allegations.

Sincerely,

Michael P. Baker
Assistant Chief
Commanding Officer
Police Commissioner's Office

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